

P O R T E R | S C O T T

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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE, CARBONE,

SMITH & KOYAMA, AND MICHAEL R. CHAMBERS

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/13/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**NOTICE OF DEMURRER AND
DEMURRER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT**

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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1 **TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:**

2 **PLEASE TAKE NOTICE** that on date and time to be set by the Court in Department 301
3 located at 400 McAllister St., San Francisco, CA, 94102, Defendants CSAA INSURANCE
4 EXCHANGE, CARBONE, SMITH & KOYAMA, AND MICHAEL R. CHAMBERS (“Defendants”) will
5 move the Court, pursuant to Code of Civil Procedure sections 430.10 et seq., for an order sustaining
6 Defendants’ Demurrer to Plaintiff FRANCISCUS DYLAN ROSARIO’s First Amended Complaint
7 (“FAC”).

8 This Demurrer will be based upon this Notice of Demurrer, Defendants’ Statement of
9 Demurrer, Defendants’ Memorandum of Points and Authorities, the Declaration of
10 Tyler J. O’Connell, Request for Judicial Notice, and all other pleadings, papers, and records on file
11 herein, and such other oral and documentary evidence as may be presented at the time of the hearing
12 of this Demurrer. The demurrer must be sustained on the following grounds:

- 13 1. As to the sole cause of action, the FAC improperly targets protected litigation
14 conduct under Civil Code § 47(b) and Code Civ. Proc. § 425.16 and is therefore
15 barred as a matter of law.
- 16 2. As to the sole cause of action, the requisite statute of limitations precludes the claim.
17 (Code of Civil Procedure § 473(b).)
- 18 3. As to the sole cause of action, Plaintiff lacks standing to sue these demurring
19 Defendants.
- 20 4. As to the sole cause of action, this Court has no jurisdiction of the subject of the
21 cause of action alleged in the pleading. (Code of Civ. Proc., § 430.10, subd.(a).)
- 22 5. As to the sole cause of action, there is another action pending between the same
23 parties on the same cause of action. (Code of Civ. Proc., § 430.10, subd.(b).)
- 24 6. As to the sole cause of action, there is a defect or misjoinder of parties. (Code of Civ.
25 Proc., § 430.10, subd.(d).)
- 26 7. As to the sole cause of action, the pleading fails to allege facts sufficient to constitute
27 any cause of action against Defendants. (Code of Civ. Proc., § 430.10, subd.(e).)

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1 8. As to the sole cause of action, the pleading is uncertain (Code of Civ. Proc., § 430.10,
2 subd.(f).)

3 **TENTATIVE RULINGS**

4 A. The San Francisco Superior Court adopts CRC 3.1308 as the tentative ruling
5 procedure in civil law and motion and discovery matters. For Real Property Court, compliance with
6 8.10(B) is required.

7 B. Parties may obtain a tentative ruling issued by the Law and Motion and Discovery
8 Departments by telephoning (415) 551-4000 or visiting the court's website at
9 <https://sf.courts.ca.gov/> and clicking the online services link. Changes in telephone numbers will
10 appear in the official newspapers.

11 C. A party who fails to appear at the hearing is deemed to submit to the tentative ruling.
12 However, no party may submit to a tentative ruling that specifies that a hearing is required.

13 D. Parties who intend to appear at the hearing must give notice to opposing parties and
14 the court promptly, but no later than 4:00 p.m. the day before the hearing unless the tentative ruling
15 has specified that a hearing is required. Notice of contesting a tentative ruling must be provided by
16 sending an email to the court to contestdept302tr@sftc.org with a copy to all other parties stating,
17 without argument, the portion(s) of the tentative ruling that the party contests. A party may not argue
18 at the hearing if the opposing party is not so notified and the opposing party does not appear.

19 E. If no party appears, or if a party does not appear because the opposing party failed to
20 give sufficient notice of intent to argue, then the tentative ruling will be adopted.

21 F. Tentative rulings are generally available by 3:00 p.m. the day before the hearing. A
22 tentative ruling that does not become available until after 3:00 p.m. is a late tentative ruling. A late
23 tentative ruling will indicate that the ruling is late. If a tentative ruling is late, the parties must appear
24 unless all parties agree to submit to a late tentative ruling in which case the Court will adopt the late
25 tentative ruling pursuant to subsection E above.

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1 G. The prevailing party on a tentative ruling is required to prepare a proposed order
2 repeating verbatim the substantive portion of the tentative ruling and must bring the proposed order
3 to the hearing even if the motion is not opposed or the tentative ruling is not contested. If the
4 prevailing party is appearing at the hearing remotely, the proposed order may be sent to the court
5 by an email to contestdept302tr@sftc.org. If the proposed order is for a summary judgment and/or
6 adjudication motion, the proposed order must comply with requirements of CCP § 437c(g). If the
7 proposed order is for a motion, such as a motion to withdraw as counsel, where there is a Judicial
8 Council form order, the prevailing party should complete the Judicial Council form as the proposed
9 order.

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12 Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

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14 By _____
15 Chad S. Tapp
16 Tyler J. O'Connell
17 Attorneys for Defendants
18 CSAA INSURANCE EXCHANGE
19 CARBONE, SMITH & KOYAMA, AND
20 MICHAEL R. CHAMBERS
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1 ***Franciscus Dylan Rosario v. Subhi Abdelhalim; CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631801***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **NOTICE OF DEMURRER AND**
7 **DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT.**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

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16 Addressed as follows:

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18 **PLAINTIFF, IN PRO PER**

19 Franciscus Dylan Rosario
20 7624 Melody Drive
21 Rohnert Park, CA 94928
22 soltrinox@gmail.com

23 I declare under penalty of perjury under the laws of the State of California that the foregoing
24 is true and correct. Executed on Sacramento, California on April 13, 2026.

25 **Monique Schubert**
26 Monique Schubert
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